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Judgment Sheet
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Revision No.13684 of 2022
(Kameer Khan. Vs. The State, etc)

J U D G M E N T

Date of hearing: 09.04.2025

Petitioner by: Ch. Farman Ali Gujjar,
Advocate.

State by: Mr. Sarfraz Khan Khichi, DPG.

ABHER GUL KHAN, J. Through this revision petition filed under section 435 Cr.P.C., Kameer Khan (petitioner) seeks setting aside the orders dated 07.12.2020 and 25.01.2021 respectively, passed by Mr. Ejaz Ahmad Sipra, Learned Magistrate Section.30 Sillanwali which were further affirmed through order dated 10.11.2021 passed by Mr. Muhammad Bilal, Learned Addl. Sessions Judge, Sillanwali whereby Kameer Khan (petitioner) being the surety of one Aamir Hayat (accused) was directed to pay penalty amount to the tune of Rs.100,000/-.

2. Arguments heard and record perused.
3. Perusal of record reveals that present petitioner stood surety for accused Aamir Hayat in case F.I.R.No.160/2019 registered under section 13(2)(a) Arms Ordinance, 1965 at police station Shah Nikdar. The report under section 173 Cr.P.C. was submitted in the trial court whereby the accused was charge sheeted and accordingly his case remained pending with Mr. Ejaz Ahmad Sipra, Learned Magistrate Section.30 Sillanwali

for evidence, however, the accused absented himself due to which his surety was issued notice and caution was made vide order dated 07.12.2020 through issuance of show-cause notice as to why surety submitted by him be not forfeited while recovering the amount from him as penalty. The petitioner did not appear before the Learned Magistrate and vide order dated 25.01.2021, his surety was forfeited and he was required to pay the penalty amount of Rs.100,000/- i.e. equivalent to the amount of surety. The said order was assailed in appeal but the learned Additional Sessions Judge was not inclined to grant any relief and appeal was dismissed vide order dated 10.11.2021, hence this criminal revision.

4. The record attached with this criminal revision is crystal clear that apart from case F.I.R.No.160/2019 registered under section 13(2)(a) Arms Ordinance, 1965 at police station Shah Nikdar, Aamir Hayat (accused) was simultaneously also facing trial in another case F.I.R.No.139/2019 registered at police station Shah Nikdar and in the said challan the accused remained present before the trial court throughout the proceedings. For a short period due to pandemic of COVID-19 he was exempted from personal appearance before the trial court, who was found confined in District Jail Sargodha, however, the order sheet of trial court in case F.I.R.No.139/2019 categorically contained the fact that vide order dated 21.09.2020, accused Amir Hayat was summoned through non-bailable warrants of arrest who was granted concession of bail and he appeared before the trial court on 16.11.2020 along with other co-accused and the case was fixed for evidence of prosecution. The order for forfeiture of bail bonds was made on

25.01.2021 due to the absence of Aamir Hayat (accused) and Kameer Khan (surety) whereas the same Learned Magistrate i.e. Mr. Ejaz Ahmad Sipra, Learned Magistrate Section.30 Sillanwali marked the attendance of accused Aamir Hayat (accused) in case F.I.R.No.139/2019 who along with Khalid Khan (co-accused) attended the trial court on bail. To the utmost surprise of this Court the Learned Magistrate Section.30 Sillanwali did not take into consideration the fact that he was the same accused who appeared before him and his attendance was also being marked in case F.I.R.No.139/2019 but on the other hand in the case F.I.R.No.160/2019 not only his absence was marked but proceedings against his surety were also initiated illegally which otherwise have no backing of law. It is important to note here that the surety's responsibility is limited to ensure the accused's attendance in the case for which the bond was granted. The Hon'ble Singh High Court while dealing with a similar matter in case reported as Mst. JAMTI KHATOON MASTOI vs. The STATE (2023 Y L R 684) held as under;-

"In view of what has been stated above, as the accused Talib had put in appearance before the Court and thus surrendered himself to the jurisdiction of the said Court and as the said Court after having heard the said accused had allowed him interim bail before arrest, therefore, in present petitioner stood absolved of his legal liability to produce the said accused before the Court. In instant case, the accused was not only produced by the applicant/surety, but he also himself surrendered through his application and then was taken into custody by the trial Court. Hence, the applicant/surety stood absolved of her legal liability to produce the said accused before the trial Court. Accordingly, the impugned order in view of above legal-cum-factual position,

seems to be unjustified and cannot be maintained.

5. The Court is not oblivious of the fact that granting bail is a fundamental aspect of the justice system which prevents the premature punishment of individuals and safeguards their liberty until a thorough investigation and adjudication of the case occur. Additionally, releasing accused individuals on bail helps alleviate overcrowding in already congested prisons. People often come forward to act as sureties for the accused out of genuine compassion, typically without any expectation of personal gain, but rather out of simple goodwill and the purpose of standing surety is to ensure the appearance of the individual for whom the surety is provided. Once that individual appears before the Court, the surety's liability ends, and the matter then lies solely between the Court and the accused. Reference in this regard can be made to the case law reported as MUHAMMAD BILAL vs. THE STATE (2000 YLR 2676). The relevant portion from the said order is reproduced below for ready reference:-

Section 514 of the Cr.P.C. is not to be interpreted in such a grammatical way. It must be remembered that grant of bail is an essential part of the system of administration of justice. It avoids punishing someone in advance and ensures liberty until a case is duly enquired into and adjudged. Whereas, the release of accused persons on bail helps in preventing overcrowding in the already overcrowded prisons. People come forward to stand surety for the accused out of ordinary A fellow-feelings and invariably without any ambition for gain or benefit, rather for, mere benevolence. Therefore, in dealing with cases of sureties who may be in default, a judicial mind is supposed to maintain a balance between undue leniency, which may be leading to abuse of the procedure and interference with the course of justice.

6. It is also important to note here that in accordance with the scope of criminal revision as mentioned in section 435 Cr.P.C. correctness, legality or propriety of a

finding of a criminal court can be looked into and in appropriate cases interfered with. On the basis of above discussion, when this Court has arrived at the conclusion that since the orders dated 07.12.2020 and 25.01.2021 respectively, passed by Mr. Ejaz Ahmad Sipra, Learned Magistrate Section.30 Sillanwali and order dated 10.11.2021 passed by Mr. Muhammad Bilal, Learned Addl. Sessions Judge, Sillanwali are not sustainable in the eye of law, therefore, same are hereby set-aside. As a sequel thereof, instant criminal revision is allowed in circumstances.

(ABHER GUL KHAN)
JUDGE

Approved for reporting

JUDGE

Abdul Rehman